IN THE NATIONAL COMPANY LAW TRIBUNAL,

NEW DELHI BENCH, COURT-III

I.A.-337/2025
IN
CA.CAA-70(ND)/2025

(Under Rule 11 of the National Company Law Tribunal Rules, 2016)

IN THE MATTER OF SCHEME OF AMALGAMATION:

1. **M/s. SNAP-ON TOOLS PRIVATE LIMITED**
   CIN: U29256DL2003PTC122332

   Having Its Registered Office At:
   S-353, Ground Floor,
   Panchsheel Park, Delhi – 110017

   ... Transferor Company No. 1 / Applicant Company No. 1

AND

2. **M/s. CAR-O-LINER INDIA PRIVATE LIMITED**
   CIN: U29253DL2013FTC261296

   Having Its Registered Office At:
   804, Fourth Floor, Arjun Nagar,
   Bhisma Pitamah Marg, New Delhi – 110003

   ... Transferor Company No. 2 / Applicant Company No. 2

AND

3. **M/s. NORBAR TORQUE TOOLS INDIA PRIVATE LIMITED**
   CIN: U51909DL2011FTC381466

   Having Its Registered Office At:
   S-353, Ground Floor,
   Panchsheel Park, Delhi – 110017

   ... Transferor Company No. 3 / Applicant Company No. 3

WITH

M/s. SNAP-ON BUSINESS SOLUTIONS INDIA PRIVATE LIMITED
CIN: U74899DL1994PTC062887

Having Its Registered Office At:
11th Floor, Tower A, DLF Towers Jasola,
Jasola District Centre, New Delhi – 110025

... Transferee Company / Applicant Company No. 4

Order Pronounced On: 09.10.2025

CORAM:

SHRI BACHU VENKAT BALARAM DAS,
HON'BLE MEMBER (JUDICIAL)

DR. SANJEEV RANJAN,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant(s) : Mr. Upinder Singh, Ms. A. Chhabra, Mr. Arjun, Mr. Manpreet, Advs.

ORDER

PER: BACHU VENKAT BALARAM DAS, MEMBER (JUDICIAL)

1. This is an Application filed by the Applicants under Rule 11 of the National Company Law Tribunal Rules, 2016, seeking to place on record additional consent affidavit received from an unsecured creditor of Applicant No. 1, namely, the Hongkong and Shanghai Banking Corporation Limited ("HSBC Bank"), thereby submitting that, accordingly, the consent received from unsecured creditor of Applicant No. 1 stands increased from 94.3% to more than 99 %.

2. The same is taken on record subject to just exceptions.

3. Accordingly, **I.A.-337/2025 is hereby disposed of**.

Sd/- **Sd/-**

(DR. SANJEEV RANJAN) **(BACHU VENKAT BALARAM DAS)**
MEMBER (TECHNICAL) **MEMBER (JUDICIAL)**

IN THE NATIONAL COMPANY LAW TRIBUNAL,

NEW DELHI BENCH, COURT-III

COMPANY APPLICATION NO. (CAA) – 70(ND)/2025

(Under Section 230-232 and other applicable provisions of the Companies Act, 2013 r/w the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016)

IN THE MATTER OF SCHEME OF AMALGAMATION:

1. **M/s. SNAP-ON TOOLS PRIVATE LIMITED**
   CIN: U29256DL2003PTC122332

   Having Its Registered Office At:
   S-353, Ground Floor,
   Panchsheel Park, Delhi – 110017

   ... Transferor Company No. 1 / Applicant Company No. 1

AND

2. **M/s. CAR-O-LINER INDIA PRIVATE LIMITED**
   CIN: U29253DL2013FTC261296

   Having Its Registered Office At:
   804, Fourth Floor, Arjun Nagar,
   Bhisma Pitamah Marg, New Delhi – 110003

   ... Transferor Company No. 2 / Applicant Company No. 2

AND

3. **M/s. NORBAR TORQUE TOOLS INDIA PRIVATE LIMITED**
   CIN: U51909DL2011FTC381466

   Having Its Registered Office At:
   S-353, Ground Floor,
   Panchsheel Park, Delhi – 110017

   ... Transferor Company No. 3 / Applicant Company No. 3

WITH

M/s. SNAP-ON BUSINESS SOLUTIONS INDIA PRIVATE LIMITED
CIN: U74899DL1994PTC062887

Having Its Registered Office At:
11th Floor, Tower A, DLF Towers Jasola,
Jasola District Centre, New Delhi – 110025

... Transferee Company / Applicant Company No. 4

Order Pronounced On: 09.10.2025

CORAM:

SHRI BACHU VENKAT BALARAM DAS,
HON'BLE MEMBER (JUDICIAL)

DR. SANJEEV RANJAN,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant(s) : Mr. Upinder Singh Mr. Joydeep, Ms. Aashima, Mr. Arjun, Mr. Manpreet, Advocates.

ORDER

PER: BACHU VENKAT BALARAM DAS, MEMBER (JUDICIAL)

1. This is a 1st Motion Application filed by the Applicants seeking approval of this Tribunal about the Scheme of Amalgamation under Sections 230 and 232 of the Companies Act, 2013 read with the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016 in respect of the Transferee Company and the Transferor Companies (hereinafter referred to as "Applicant Companies"). It is represented that the registered office address of the Applicant Companies is situated in NCT of Delhi and therefore the subject matter of the said Application falls within the jurisdiction of this Tribunal.

2. The Ld. Counsel(s) have given the brief description of the Applicant Companies, which are as follows:

   i. That Applicant Company No. 4/ Transferee Company namely M/s. Snap-on Business Solutions India Private Limited, bearing CIN: U74899DL1994PTC062887 was incorporated on 22.11.1994 under the provisions of the Companies Act, 1956 as a Company limited by Shares (Non-govt. company) with the Registrar of Companies, NCT of Delhi and Haryana. The registered office address of the Applicant Company No. 4 is situated at 11th Floor, Tower A, DLF Towers Jasola, Jasola District Centre, New Delhi – 110025. The Authorized Share Capital of the Company is Rs. 1,25,00, 000/- and the paid-up share capital of the Company is Rs. 95,96,780/-.

   ii. The Transferor Company No. 1/ Applicant No. 1 namely M/s. Snap-on Tools Private Limited, bearing CIN: U29256DL2003PTC122332 was incorporated on 19.09.2003 under the provisions of the Companies Act, 1956 as a Company limited by Shares (Non-govt.

company) with the Registrar of Companies, NCT of Delhi and Haryana. The registered office of Applicant Company No. 1 is situated at S-353, Ground Floor, Panchsheel Park, Delhi – 110017. The Authorized Share Capital of the Company is Rs. 75,00,00,000/- and the paid-up share capital of the Company is Rs. 47,43,80,000/-.

iii. The Transferor Company No. 2/ Applicant No. 2 namely M/s. Car-O-Liner India Private Limited, bearing CIN: U29253DL2013FTC261296 was incorporated on 28.11.2013 under the provisions of the Companies Act, 1956 as a Company limited by Shares (Non-govt. company) with the Registrar of Companies, NCT of Delhi and Haryana. The registered office of Applicant Company No. 2 is situated at 804, Fourth Floor, Arjun Nagar, Bhisma Pitamah Marg, New Delhi – 110003. The Authorized Share Capital of the Company is Rs. 1,00,000/- and the paid-up share capital of the Company is Rs. 1,00,000/-.

iv. The Transferor Company No. 3/ Applicant No. 3 namely M/s. Norbar Torque Tools India Private Limited, bearing CIN: U51909DL2011FTC381466 was incorporated on 15.06.2011 under the provisions of the Companies Act, 1956 as a Company limited by Shares (Non-govt. company) with the Registrar of Companies, NCT of Delhi and Haryana. The registered office of Applicant Company No. 3 is situated at S-353, Ground Floor, Panchsheel Park, Delhi – 110017. The Authorized Share Capital of the Company is Rs. 5,00,00,000/- and the paid-up share capital of the Company is Rs. 4,98,79,990/-.

3. That the Affidavit in support of the present Application has been sworn by Mr. Raja Sagi Suryanaryana Raju on behalf of Applicant No. 1, Mr. Prasanta Kumar Ghosh on behalf of Applicant No. 2, Mr. Narendra Vilas Borse on behalf of Applicant No. 3, and Ms. Neeru Goel on behalf of Applicant No. 4, each of whom has been duly authorised by the Board of Directors of their respective Applicant Companies vide Board Resolutions passed at their meetings held on 04.06.2025, 04.06.2025, 06.06.2025, and 05.06.2025 respectively; and the same has been duly filed along with the Application.

4. The Board of Directors of the Applicant No. 4 i.e., the Transferee Company in its meeting held on 05.06.2025 approved and adopted the Scheme of Amalgamation.

5. The Appointed date for the proposed scheme of amalgamation is specified as 01.04.2024.

6. The Applicants submitted that the Transferor Companies, i.e. Applicant Nos. 1 to 3, and the Transferee Company, i.e. Applicant No. 4, form part of the same group ultimately held by Snap-on Incorporated, USA. The Transferor Companies as well as the Transferee Company are engaged in similar and/or complementary business activities. Further, Transferor Company Nos. 2 and 3 are wholly-owned subsidiaries of the Transferee Company. In view thereof, the members and management of the Applicant Companies have contemplated a consolidation of the Transferor Companies with the Transferee Company, which is expected to result in greater business synergies, efficiencies, simplification of corporate structure, and reduction of administrative and other costs for the Snap-on Group in respect of its operations in India.

7. That the proposed Scheme of Amalgamation provides for amalgamation of Transferor Companies with the Transferee Company; issue and allotment of equity shares of the Transferee Company to the shareholders of Transferor Company No. 1, in the manner set out in the Scheme.

8. The Applicant Companies submitted the following:

   a) The Applicant Companies have NIL Secured Creditors.

   b) That 100% Equity Shareholders of each of the Applicant Companies (2 Equity Shareholders for Applicant No. 1; 2 Equity Shareholders for Applicant No. 2; 2 Equity Shareholders for Applicant No. 3; 2 Equity Shareholders for Applicant No. 4) have furnished their respective consents to the proposed Scheme of Arrangement by way of affidavits, thereby signifying their written approval to the Scheme.

   c) That with respect to the Unsecured Creditors –

      i. That Applicant No. 1 has 43 (Forty-Three) unsecured creditors, out of which creditors representing 94.3% in value, being 30 in number, have given their consent to the Scheme.

      ii. Applicant No. 2 has 5 (Five) unsecured creditors, all of whom representing 100% in value have given their consent.

      iii. Applicant No. 3, has 3 (Three) unsecured creditors, all of whom representing 100% in value have given their consent.

      iv. Applicant No. 4, has 1 (One) unsecured creditor, who has also consented representing 100% in value.

9. In view of the above, the Applicant Company prays the following:

"*A. Dispense with the requirement of convening meetings of equity members of the Transferor Companies and the Transferee Company as all the Equity Shareholders of the Transferor Companies and Transferee Companies have given their consent in writing on Affidavits for the Scheme of Amalgamation and the said dispensation;*

B. Dispense with the requirement of convening meetings of secured creditors of the Transferor Companies and the Transferee Company as there are no secured creditors in Transferor Companies and Transferee Company;

C. Dispense with the requirement of convening meetings of unsecured creditors of the Transferor Company No. 1 as the unsecured creditors representing more than 94% total outstanding amount of unsecured creditors of Transferor Company No. 1 have given their consent in writing on Affidavits for the Scheme of Amalgamation and the said dispensation;

D. Dispense with the requirement of convening meetings of unsecured creditors of the Transferor Company No. 2 as the unsecured creditors representing 100% total outstanding amount of unsecured creditors of Transferor Company No. 2 have given their consent in writing on Affidavits for the Scheme of Amalgamation and the said dispensation;

E. Dispense with the requirement of convening meetings of unsecured creditors of the Transferor Company No. 3 as the unsecured creditors representing 100% total outstanding amount of unsecured creditors of Transferor Company No. 3 have given their consent in writing on Affidavits for the Scheme of Amalgamation and the said dispensation;

F. Dispense with the requirement of convening meetings of unsecured creditors of the Transferee Company as the unsecured creditors representing 100% total outstanding amount of unsecured creditors of Transferee Company have given their consent in writing on Affidavits for the Scheme of Amalgamation and the said dispensation; and / or

G. Pass any other order(s) as this Hon'ble Tribunal may deem fit and proper."

10. That the Ld. Counsel for the Applicant has filed an Interlocatory Application bearing I.A. No. 377/2025 placing on record additional consent affidavit received from an unsecured creditor of Applicant No. 1, namely, The Hongkong and Shanghai Banking Corporation Limited (HSBC Bank"), thereby submitting that, accordingly, the consent received from unsecured creditor of Applicant No. 1 stands increased from 94.3% to more than 99 %.

ORDER:

11. Having heard the submissions made by the Ld. Counsel(s) and having perused the records/ documents placed on record, we allow the prayer(s) of the Applicant Companies as under:

    a) We allow the prayer for dispensation of convening the meetings of the Equity Shareholders of all the Applicant Companies, since 100% of the equity shareholders of each of the Applicant Companies (being 2 equity shareholders for Applicant No. 1; 2 equity shareholders for Applicant No. 2; 2 equity shareholders for Applicant No. 3; and 2 equity shareholders for Applicant No. 4) have furnished their consent affidavits signifying their written approval to the Scheme.

    b) We allow the prayer for dispensation of convening the meetings of the Secured Creditors of the Applicant Companies, as it is submitted that the Applicant Companies have NIL secured creditors.

    c) We allow the prayer for dispensation of convening the meetings of the Unsecured Creditors of Applicant No. 1, in view of the fact that out of 43 unsecured creditors, 31 unsecured creditors representing more than 99% in value have given their consent affidavits approving the Scheme.

    d) We allow the prayer for dispensation of convening the meetings of the Unsecured Creditors of Applicant No. 2, in view of the consent affidavits filed by all 5 unsecured creditors representing 100% in value of the unsecured debt.

    e) We allow the prayer for dispensation of convening the meetings of the Unsecured Creditors of Applicant No. 3, in view of the consent affidavits filed by all 3 unsecured creditors representing 100% in value of the unsecured debt.

    f) We allow the prayer for dispensation of convening the meetings of the Unsecured Creditors of Applicant No. 4, in view of the consent affidavit filed by its sole unsecured creditor representing 100% in value of the unsecured debt.

12. The Applicant Companies have filed their Memorandum and Articles of Association inter alia delineating its object clauses as well as the latest audited annual financial reports i.e., financial statements for the financial year ending 31.12.2024, accompanied with auditor's reports as required under section 232(2)(e) of the Companies Act, 2013.

13. The prayer sought in the present Application bearing CA(CAA)-70/(ND)/2025 stands **allowed** on the aforesaid term and accordingly **disposed of**.

The Registry is directed to serve the order to all the parties.

Sd/-

(DR. SANJEEV RANJAN)
MEMBER (TECHNICAL)

Sd/-

(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)